

STATE OF NEW YORK

620--A

Cal. No. 225

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to the practice of professional geology

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 7209 of the education law, as
2 amended by chapter 62 of the laws of 1989, is amended and a new subdivi-
3 sion 10 is added to read as follows:

4 6. It shall be lawful for a corporation organized and existing under
5 the laws of the state of New York which on the fifteenth day of April,
6 nineteen hundred thirty-five and continuously thereafter, was lawfully
7 practicing engineering or land surveying in New York state, to continue
8 such practice provided that the chief executive officer shall be a
9 professional engineer licensed under this article, if practicing engi-
10 neering, or a land surveyor licensed under this article, if practicing
11 land surveying, and provided further that the person or persons carrying
12 on the actual practice of engineering or surveying on behalf of, or
13 designated as "engineer" or "surveyor", with or without qualifying or
14 characterizing word, by such corporation shall be authorized to practice
15 engineering or land surveying as provided in this article. Such corpo-
16 ration shall also be authorized to practice geology provided that such
17 corporation's corporate purposes include the practice of professional
18 geology pursuant to subdivision ten of this section. It shall be lawful
19 for a corporation which, on account of or as a result of requirements,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01545-07-5

1 restrictions or provisions of federal law, was organized subsequent to
2 April fifteenth, nineteen hundred thirty-five for the purpose of taking
3 over an existing engineering organization established prior to such time
4 and which has taken over such organization and continued its engineering
5 activities, provided that the chief executive officer of such corpo-
6 ration shall be a professional engineer licensed under this article and
7 provided further, that the person or persons carrying on the actual
8 practice of engineering on behalf of, or designated as "engineer", with
9 or without qualifying or characterizing word, by such corporation, shall
10 be authorized to practice engineering as provided in this article. No
11 such corporation shall change its name or sell its franchise or transfer
12 its corporate rights, directly or indirectly to any person, firm or
13 corporation without the consent of the department. Each such corporation
14 shall obtain a triennial registration on payment of a fee of fifty
15 dollars.

16 10. Prior to December thirty-first, two thousand twenty-eight, the
17 department and the department of state shall allow a business corpo-
18 ration as described in subdivision six of this section to amend its
19 certificate of incorporation so that its corporate purposes include the
20 practice of professional geology. The certificate of amendment shall
21 have attached thereto a certificate or certificates issued by the
22 licensing authority certifying that at least one director or officer of
23 the business corporation is a professional geologist licensed under this
24 article. Notwithstanding any provision of law to the contrary, such
25 business corporation shall be required to comply with all applicable
26 laws, rules, or regulations relating to the practice of professional
27 geology under this title.

28 § 2. Subdivisions 2 and 3 of section 7210 of the education law, as
29 amended by chapter 483 of the laws of 2001, are amended to read as
30 follows:

31 2. Upon application a certificate of authorization shall be issued by
32 the department to all individuals, corporations, limited liability
33 companies, limited liability partnerships, partnerships and joint enter-
34 prises specified in subdivision one of this section and which are
35 authorized to provide professional engineering [~~or~~], land surveying or
36 professional geology services and pay the appropriate fee.

37 3. A "certificate of authorization" shall authorize such individual,
38 corporation, limited liability company, limited liability partnership,
39 partnership or joint enterprise to provide professional engineering
40 [~~or~~], land surveying or professional geology services for three years
41 from the date of issuance subject to, as otherwise prescribed by law,
42 the supervision of the regents of the university of the state of New
43 York including the power to discipline and impose penalties in the same
44 manner and to the same extent as is provided with respect to individuals
45 and their licenses and registration pursuant to this title.

46 § 3. This act shall take effect immediately.